

SENATE No. 1185

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting victims of rape and their children.

PETITION OF:

NAME:

Mark C. Montigny

DISTRICT/ADDRESS:

Second Bristol and Plymouth

SENATE No. 1185

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 1185) of Mark C. Montigny for legislation to protect victims of rape and their children. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1058 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting victims of rape and their children.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 3 of chapter 209C of the General Laws, as appearing in the 2020 Official Edition,
2 is hereby amended by striking the fourth sentence in subsection (a) and inserting in place thereof
3 the following sentence:-

4 “No court shall make an order providing visitation rights to a parent who was convicted
5 of rape, under sections 22 to 23B, inclusive, of chapter 265 or section 2, 3, or 4 of chapter 272,
6 and is seeking to obtain visitation with the child who was conceived during the commission of
7 that rape; provided, that in the absence of a conviction a court shall not make an order providing
8 said visitation rights whenever clear and convincing evidence of the commission of rape can be
9 established”.